

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X **SUMMONS**

JOSE SANTIAGO,

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE OFFICER
JONATHAN KIM, POLICE OFFICER JOHN DOES 1-3
(NAMES JOHN DOES BEING FICTITIOUS BECAUSE
TRUE NAMES ARE CURRENTLY UNKNOWN),
Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Bronx County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 21, 2021

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street, New York, NY 10007

POLICE OFFICER JONATHAN KIM
900 FTELEY AVE
BRONX, NY 10473

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St., Ste 1603
New York, NY 10005
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
JOSE SANTIAGO,

Plaintiff,

INDEX NO:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER JONATHAN
KIM, POLICE OFFICER JOHN DOES 1-3
(NAMES JOHN DOES BEING FICTITIOUS BECAUSE
TRUE NAMES ARE CURRENTLY UNKNOWN),

Defendants.

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Plaintiff, JOSE SANTIAGO, by his attorneys. LORD LAW GROUP PLLC, alleges upon
knowledge as to himself and his own actions, and upon information and belief as to all other
matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages and punitive damages
pursuant to the common law of the State of New York, for violations of his rights under the New
York Constitution, and pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his
rights under the Constitution of the United States of America.

JURISDICTION AND VENUE

2. Jurisdiction lies in the Supreme Court of New York, County of The Bronx, as all
Defendants resided in the State of New York, and the amount in controversy exceeds the
jurisdictional amounts of all lower courts.

3. Plaintiff complied with the requirements of New York General Municipal Law
Section 50-H by serving a notice of claim on the City of New York dated January 01, 2020.

4. Jose Santiago (“Santiago”) was deposed by the City of New York pursuant to 50-H on May 14, 2020.

5. The City of New York has not settled or adjusted this claim.

6. That all conditions and requirements precedent to the commencement of this action have been complied with.

7. Venue is proper under CPLR § 504 in the County of The Bronx as it is the county where this cause of action arose.

JURY DEMAND

8. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PRELIMINARY STATEMENT

9. Plaintiff is a resident of the of the State of New York.

10. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department (“NYPD”), a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

11. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York under New York law for any liability arising from conduct described herein.

12. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

13. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

14. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

15. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

16. Defendant Officer Jonathan Kim ("Kim") was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

17. Plaintiff was incarcerated for approximately 12 hours before being released from the precinct. The Bronx County DA declined prosecution

STATEMENT OF FACTS COMMON TO ALL CLAIMS

18. At, or near, the Northeast Corner of Leland Ave and East Tremont Ave. , passengers in a Dodge Durango SUV threw a can at the car Mr. Santiago was driving.

19. Mr. Sanitago got out of the car to see what was going on, and four guys came out of the vehicle armed with bats. They screamed and kicked his door.

20. Mr. Santiago jumped into his car, running for his life.

21. The cops came to scene soon after. With his window broken, he explained to the Police what took place. He implored the officers to chase after the offenders, but the officers, indifferent to the crime that was committed demurred.

22. Mr. Santiago was taken into custody. He was released approximately 12 hours later. The Bronx District Attorney's Office declined prosecution.

DAMAGES

23. This action seeks damages on behalf of Plaintiff for emotional pain and suffering, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

24. Plaintiff has suffered, and continues to suffer, severe and ongoing damages, specifically including, physical pain and injuries, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

25. The acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

**FIRST CLAIM:
FALSE ARREST UNDER STATE AND FEDERAL LAW**

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

30. That on October 24, 2019, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

31. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

32. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

33. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CLAIM:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. That, on October 24, 2019, Defendants Kim and John Does were acting within the scope of their employment with the Defendant, the City of New York.

36. That, on October 24, 2019, Defendants Kim and John Does committed an assault and battery knowingly, intentionally, and willfully against Mendoza.

37. That, on October 24, 2019, Defendants Kim and John Does who committed the aforementioned assault and battery upon Plaintiff were acting within the scope of their employment with the City of New York.

38. That, on October 24, 2019, the assault and battery on Plaintiff was without probable cause and was not the result of an appropriate arrest.

39. By reason of the foregoing, Defendants Kim and John Does are liable to Plaintiff for damages.

**THIRD CLAIM:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. Defendants John Does and other officers, had an opportunity prevent the false arrest of Mr. Santiago, had a duty to intervene and prevent such conduct and failed to intervene.

42. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages previously alleged.

**FOURTH CLAIM:
VIOLATION OF THE NEW YORK STATE CONSITUTION**

43. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

44. By virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to due process under Article I § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I § 12 of the New York State Constitution.

45. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

46. Consequently, the Individual Detectives and the City of New York are liable to Plaintiff for compensatory and punitive damages.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: January 21, 2021
New York, New York

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
JOSE SANTIAGO
14 Wall St., Ste 1603
New York, NY 10005

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for plaintiff JOSE SANTIAGO I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
January 21, 2021



Masai I. Lord
Counsel for Plaintiff